RECAP | REGULAR TOWN COUNCIL MEETING

Tuesday, August 11, 2026 at 6:00 PM
Council Chambers - Apex Town Hall, 73 Hunter Street
The meeting will adjourn when all business is concluded or 11:00 PM, whichever comes first

DISCLAIMER: *This meeting recap is intended to provide residents with a quick recap of key actions taken by the Apex Town Council. It is not intended to replace official meeting minutes, agenda materials, or meeting video.*

Summary of actions taken. Additional details are included below.

Item No.	Action	Motion	Second	Votes	Results
N/A	Adoption of Agenda	Mahaffey	Zegerman	Unanimous 5-0	PASS
N/A	Consent Agenda as Amended	Zegerman	Mahaffey/Mu	Unanimous 5-0	PASS
TM2	Authorize up to $25,000 for Downtown Apex Business Promotion during Construction of Salem Streetscape Project Completion through January 2027	Reese	Gray	Unanimous 5-0	PASS
TC1	Clarify membership appointments on Board of Adjustment (BOA)	Mahaffey	Zegerman/Gray	Unanimous 5-0	PASS
TC2	Confirm Board of Adjustment Vice-Chair	Zegerman	Mahaffey	Unanimous 5-0	PASS
TC3	Confirm Culture and Arts Advisory Board Chair and Vice-Chair	Reese	Mahaffey	Unanimous 5-0	PASS
PF	Split Public Forum Speaker No. 1 into individual vs. group	Gray	Zegerman	Unanimous 5-0	PASS

Item No.	Action	Motion	Second	Votes	Results
PH1	Continuance of Annexation No. 831	Mahaffey	Zegerman	Unanimous 5-0	PASS
N/A	10 minutes Recess / Reconvene	N/A	N/A	N/A	PASS
N/A	Closed Session Consult with Attorney	Zegerman	Mahaffey	Unanimous 5-0	PASS
PH2 and PH3	Approval of Annexation No. 828 and Rezoning Case No. 26CZ04 – 2913 Evans Road	Gray	Mu	2-3	FAILED
PH4	Approval of Rezoning Case No. 26CZ03 Veridea SD Plan Amendment Wake Tech Conlon Campus	Mahaffey	Zegerman	Unanimous 5-0	PASS
PH2 and PH3	Reconsideration of Annexation No. 828 and Rezoning Case No. 26CZ04 – 2913 Evans Road	Zegerman	Mahaffey	Unanimous 5-0	PASS
PH2 and PH3	Approval of Annexation No. 828 and Rezoning Case No. 26CZ04 – 2913 Evans Road	Mahaffey	Zegerman	Unanimous 5-0	PASS
RA1	Budget Amendment No. 2 – Future Fire Station No. 1 and Proposed Market Analysis and Feasibility Study Funding	Reese	Mahaffey	Unanimous 5-0	PASS
CS	Enter Closed Session	Zegerman	Mahaffey	Unanimous 5-0	PASS
N/A	Adjournment	Gray	Mu	Unanimous 5-0	PASS

COMMENCEMENT, INVOCATION, AND PLEDGE OF ALLEGIANCE

Mayor Gilbert called the meeting to order at 6:01 p.m.

A video recording of this meeting can be viewed on the Town's Youtube Channel here.

ANNOUNCEMENTS AND PETITIONS BY THE GOVERNING BODY

During the announcements and petitions section, members of the governing body may share updates on a variety of different topics or submit petitions for future consideration with the entire board and the community. The following announcements were made:

- Mayor Jacques Gilbert recognized several former members of the Apex Board of Commissioners and Town Council who were in attendance including Dr. Doug Meckes, Ms. Christine Hilt, Mr. Carl Helton, Mr. Donald Grimes, and Mr. Wes Moyer.
- Councilmember Shane Reese recognized the passing of Mr. Lynn Council, honoring his bravery and courage.
- Councilmember Sue Mu recognized the hard work and dedication of the Apex Police Department in keeping the Community safe
- Other members of Council either had no additional comments or expressed gratitude for the strong community turnout and participation during the meeting.

ADOPTION OF THE MEETING AGENDA

A motion was made by Mayor Pro-Tempore Terry Mahaffey, seconded by Councilmember Arno Zegerman to approve the meeting agenda as presented. Passed unanimously (5-0).

CONSENT AGENDA

The Town Clerk announced the following amendments to the consent agenda:

- Consent Item CN4, involving the Axon Inc. Aire DroneSense Program and Interview Room Camera System, was deferred to the Council's Public Safety Committee for additional review.
- The motion for Consent Item CN23 was revised to clarify that Council's action included a full replacement of Article V, Section 10 of the Town's Personnel Policy related to Employment of Relatives and Nepotism.

With no additional requests, a motion was made by Councilmember Arno Zegerman, seconded by Mayor Pro-Tempore Terry Mahaffey to approve the consent agenda as amended. Passed unanimously (5-0).

CN1 Advisory Board Attendance Reports 2026 – Quarter 2

Council voted to receive and accept the Resident Advisory Board attendance reports for Quarter Two (2) for calendar year 2026, covering April 1, 2026 through June 30, 2026.

CN2 Agreement - Fit3D, Inc. – Law Enforcement Officer (LEO) Wellness Program Body Scan Software Subscription and Terms of Use - June 30, 2027

Council approved a subscription agreement between Fit3D, Inc. and the Town of Apex, effective until June 30, 2027, for the SNAP Digital Body Scan software for the Apex Police Department's Wellness Program in the amount not to exceed $1,200, and authorized the Town Manager, or their designee, to execute on behalf of the Town.

CN3 Agreement – Chatham County and Town of Apex – Interlocal Agreement for Collection of Property Taxes Fiscal Year 2026-27 and Associated Resolution Authorizing Execution

Council approved an Interlocal Agreement AD Valorem Tax Billing and Collection Agreement between the Town of Apex and Chatham County for the collection of property taxes for Fiscal Year 2026-2027, and adopted a resolution authorizing the execution of the Interlocal Agreement between the Town of Apex and Chatham County related to Ad Valorem Tax Billing and Collections.

CN4 Agreement Multi-Year - Axon Inc. for Aire Drone Sense Program and Interview Room Camera System - through June 30, 2030

Council deferred this item to the Town Council's Public Safety Committee for review and a recommendation.

CN5 Agreement Multi-Year - Charles R. Underwood Inc. - On-Call Master Services Agreement (MSA) - Emergency Sewer Pump Station Repairs - through July 31, 2029

Council approved a Master Services Agreement (MSA) between Charles R. Underwood, Inc. and Town of Apex, effective through June 30, 2029, for on-call emergency pump station component upgrades, installations, repairs, and related services for the Town's Water Resources Department, and to authorized the Town Manager, or their designee, to execute the agreement on behalf of the Town.

CN6 Agreement Multi-Year - CITI, Inc. - On Call Master Services Agreement (MSA) - Repair of Instrumentation and Control System needs at Town of Apex Water and Sewer Distribution Systems and Water Reclamation Facility - through June 30, 2029

Council approved a Master Services Agreement (MSA) between CITI, Inc. and Town of Apex, effective through June 30, 2029, for on-call emergency programmable logic controller (PLC) services, supervisory control and data acquisition (SCADA), instrumentation, and network configuration services for the Water Resources Department, and authorized the Town Manager, or their designee, to execute on behalf of the Town.

CN7 Agreement Multi-Year - J & D Tree Pros, Inc. - On-Call Master Services Agreement (MSA) - Tree Trimming, Removal and Stump Grinding Services - through June 30, 2029

Council approved a Master Services Agreement (MSA) between J & D Tree Pros, Inc. and Town of Apex, for on-call emergency tree trimming, tree removal, and stump grinding services for multiple Town departments through June 30, 2029, and authorized the Town Manager, or their designee, to execute on behalf of the Town.

CN8 Agreement Multi-Year - LeadsOnline, LLC - PowerPlus Investigation System - effective through June 30, 2029

Council approved a Subscription Services Agreement between LeadsOnline, LLC and Town of Apex, for the PowerPlus Investigations Systems subscription for the Apex Police Department, effective through June 30, 2029, and to authorized the Town Manager, or their designee, to execute on behalf of the Town.

CN9 Agreement Multi-Year - MHC Software LLC - Cloud Based Document Self Service for Town Employees - through August 30, 2029

Council approved a Master Multi-Year Subscription Agreement (MSA) between MHC Software, LLC and the Town of Apex, effective August 11, 2026 through June 30, 2029, for the implementation of a cloud-based payroll and accounts payable document management and processing system, and to authorized the Town Manager, or their designee, to execute on behalf of the Town.

CN10 Agreement Multi-Year - Sanford Electrical Contractors, Inc. - On Call Master Services Agreement (MSA) - Emergency Electric Services - Bulk Water Station, Generators and Control Panels at Pump Stations, and Metal Fabrication for Protecting Vital Equipment - through July 31, 2029

Council approved a Master Services Agreement (MSA) between Sanford Electrical Contractors, Inc., and Town of Apex, for on-call emergency related electrical installation, repair, and maintenance services for water and wastewater equipment, effective through June

30, 2029, and to authorized the Town Manager, or their designee, to execute on behalf of the Town.

CN11 Agreement Multi-Year Renewal - Teladoc Health (BetterHelp) - Telehealth and Online Health Coaching Services for Apex Police Department - through June 30, 2029

Council approved Amendment No. 1 to the Teladoc Health Services Agreement between Teledoc Health, LLC and the Town of Apex, to extend the term of the agreement for telehealth and BetterHelp online therapy services for Apex Police Department's Wellness Program, effective until June 30, 2029, and to authorized the Town Manager, or their designee, to execute on behalf of the Town.

CN12 Agreement Ratification - CentralSquare Technologies, LLC - CAD-to-CAD Unify Software - through June 30, 2027

Council ratified an Oral Agreement between CentralSquare Technologies, LLC and Town of Apex, effective through June 11, 2027, for the CAD-to-CAD Unify (Cloud) software subscription for the Apex Police Department, and authorized the Town Manager, or their designee, to execute on behalf of the Town.

CN13 Annexation No. 821 - Ashburn Development - 0 Mt Zion Church Road (Previously Approved Rezoning Case No. 24CZ10) - 16.290 acres

Council adopted a Resolution Directing the Town Clerk to Investigate Petition Received, accepted the Certificate of Sufficiency by the Town Clerk, and adopted a Resolution Setting the Date of a Public Hearing for Tuesday, August 25, 2026, on the Question of Annexation - Apex Town Council's intent to annex 16.290 +/- acres, located at 0 Mt. Zion Church Road (Tract 1 PIN No. 0721-44-8562 (4.0367 acres), Tract 2 PIN No. 0721-44-2048 (11.2860 acres), and Right-of-Way (0.9699 acres), Annexation No. 828, into the Town Corporate limits.

CN14 Annexation No. 830 - 3305 Olive Chapel Road - Associated Rezoning Case No. 26CZ05 - 3.662 acres

Council adopted a Resolution Directing the Town Clerk to Investigate Petition Received, accepted the Certificate of Sufficiency by the Town Clerk, and adopted a Resolution Setting the Date of a Public Hearing for Tuesday, August 25, 2026, on the Question of Annexation - Apex Town Council's intent to annex 3.662 +/- acres, located at 3305 Olive Chapel Road (PIN No. 0712-70-5757), Annexation No. 830, into the Town Corporate limits.

CN15 Annexation No. 832 - Town of Apex - 0 Perry Road and 0 and 930 South Hughes Street - 7.995 acres

Council adopted a Resolution Directing the Town Clerk to Investigate Petition Received, accepted the Certificate of Sufficiency by the Town Clerk, and adopted a Resolution Setting

the Date of a Public Hearing for Tuesday, August 25, 2026, on the Question of Annexation - Apex Town Council's intent to annex 7.995 +/- acres, located at 0 Perry Road, 0 and 930 South Hughes Street (PIN No. 0741-46-5131), Annexation No. 832, into the Town Corporate limits.

CN16 Annexation No. 834 - 2809 Evans Road - 1.33 acres

Council adopted a Resolution Directing the Town Clerk to Investigate Petition Received, accepted the Certificate of Sufficiency by the Town Clerk, and adopted a Resolution Setting the Date of a Public Hearing for Tuesday, August 25, 2026, on the Question of Annexation - Apex Town Council's intent to annex 1.33 +/- acres, located at 2809 Evans Road (PIN No. 0721-82-1829), Annexation No. 834, into the Town Corporate limits.

CN17 Annexation No. 835 - 0 Pine Plaza Drive - 5.670 acres

Council adopted a Resolution Directing the Town Clerk to Investigate Petition Received, accepted the Certificate of Sufficiency by the Town Clerk, and adopted a Resolution Setting the Date of a Public Hearing for Tuesday, August 25, 2026, on the Question of Annexation - Apex Town Council's intent to annex 5.670 +/- acres, located at 0 Pine Plaza Drive (PIN No. 0742-97-9560 and PIN No. 0752-07-2751), Annexation No. 835, into the Town Corporate limits.

CN18 Budget Amendment No. 1 - Police Management Training Program, a Mobility Solutions Study, and the Apex Mobility Hub Phase 1 Design

Council approved Budget Ordinance Amendment No.1 appropriating funds for a Police Management Training Program ($50,000), a Mobility Solutions Study ($100,000), and the Apex Mobility Hub Phase 1 Design ($300,000).

CN19 Construction Contract Award - Sunrock Industries, LLC dba Carolina Sunrock, LLC. - Jessie Drive Phase 1

Council approved a Construction Contract award between Sunrock Industries, LLC dba Carolina Sunrock, LLC and the Town of Apex, for the Jessie Drive, Phase 1 project, in the amount of $4,696,891.72 and authorized the Town Manager, or their designee, to execute on behalf of the Town and authorized a 10% contingency to be added to the project budget for the Jessie Drive Phase 1 Project.

CN20 Contract Multi-Year - Liberty Waste - Acceptance of Yard Waste (excluding grass) through August 14, 2031

Council approved a Contract Multi-Year Yard Waste Processing and Disposal Agreement between Wall Recycling, LLC d/b/a Liberty Waste Solutions and Town of Apex, effective until July 31, 2031, for the processing and disposal of residential yard waste materials (excluding grass), and authorized the Town Manager, or their designee, to execute on behalf of the Town.

CN21 Council Meeting Minutes – Various

Council approved as submitted Meeting Minutes from the following meetings:

- *February 11, 2026 – Town Council Retreat Meeting Minutes Day 1*
- *February 12, 2026 – Town Council Retreat Meeting Minutes Day 2*
- *February 13, 2026 – Town Council Retreat Meeting Minutes Day 3*
- *June 9, 2026 - Regular Town Council Meeting Minutes*
- *June 16, 2026 – Town Council Work Session Meeting Minutes*
- *June 23, 2026 – Regular Town Council Meeting Minutes*

CN22 Memorandum of Understanding (MOU) between the Town of Apex, City of Raleigh, Town of Cary, Go Triangle, County of Wake, Town of Morrisville, JCATS, and CAMPO - Utilization of Sub-Allocated Raleigh Urbanized Area (RZA) Federal Funds to Support GoApex Transit Services

Council approved a Memorandum of Understanding (MOU) between City of Raleigh, The Research Triangle Regional Public Transpiration Authority d/d/a GoTriangle, Town of Cary, County of Wake, Town of Morrisville, Johnston County Area Transit System of the Community and Senior Services of Johnston County, Inc (JCATS), Capital Area Metropolitan Planning Organization (CAMPO) and Town of Apex, regarding Federal Transit Administration Raleigh Urbanized Area (UZA) Funding, for providing formula grant funding for transit purposes, and authorized the Town Manager, or their designee, to execute on behalf of the Town.

CN23 Personnel Policy Amendments – Collection of Insurance Premiums while on FMLA and Employment of Relatives Clarification

A)Motion to approve revisions to Article VII, Holidays and Leaves of Absence, Section 18 – Family and Medical Leave, of the Town of Apex Personnel Policy.

B)Motion to approve revisions to Article V, Conditions of Employment, Section 10 – Employment of Relatives and Nepotism, of the Town of Apex Personnel Policy.

CN24 Resolution Amendment - Peak Resilience and Wellbeing Task Force - Membership Expansion

Council approved an amendment to Resolution No. RES-2026-039, Resolution Establishing the Peak Resilience and Wellbeing Task Force, increasing the official membership of the Task Force from eighteen (18) members to thirty (30) members, with all other provisions of the resolution remaining unchanged.

CN25 Rezoning Case No. 25CZ23 Horton Park PUD Amendment - Statement and Ordinance

Council approved the Statement of the Town Council and Ordinance for Rezoning Case No. 25CZ23, Pablo Reiter, PRMS Investments LLC, petitioner, for the properties located at 0 Jessie Drive & 8252 Smith Road (PINs 0751209246 & 0750493450).

CN26 Surplus Badge and Service Weapon – Apex Police Officer Alex Cossifos - Retired Effective August 1, 2026

Council voted to declare one (1) badge and (1) service weapon (Glock Model 47 9mm handgun, with S/N Serial Number CCVX-733) as surplus property, set the price for such weapon to be $1.00 (One Dollar); and, awarded the stated badge and service weapon to Retiring Apex Police Officer Alex Cossifos who retired from the Apex Police Department effective August 1, 2026.

CN27 Tax Report - May 2026

Council approved the Apex Tax Report dated June 18, 2026

TOWN COUNCIL COMMITTEE REPORTS – *None Anticipated*

TOWN MANAGER'S REPORT

TM1 Future of Fire Station No. 1 and Proposed Market Analysis and Feasibility Study

Council received a presentation the Future of Fire Station No. 1 (Downtown) Site Redevelopment and the proposed Market Analysis and Feasibility study. A copy of the presentation can be viewed here.

TM2 Downtown Apex Business Promotion Strategy through December 2026

With Salem Streetscape construction continuing through the remainder of 2026, Council considered a proposed strategy to provide additional support and promotion for Downtown Apex businesses during the holiday season. The strategy builds on the Town's existing efforts to encourage residents and visitors to shop, dine, and spend time downtown.

A motion was made by Councilmember Shane Reese, seconded by Councilmember Edward Gray, to use up to $25,000 for Downtown Apex business promotion efforts, with approximately $5,000 per month beginning in September and continuing through January 2026. Passed unanimously (5-0).

To view the presentation and discussion live, please use this link to be redirected to the Town's Youtube Channel and begin at meeting minute mark 1:01:25.

TOWN CLERK'S REPORT

TC1 Appointments – Board of Adjustment (BOA)

A motion was made by Mayor Pro-Tempore Terry Mahaffey, seconded by Councilmember Arno Zegerman to approve the following amendments to the Board of Adjustment (BOA) membership:

- *Heidi Marie Sico from Alternate 1 to a Regular Member.*
- *Casey Angel from Alternate 2 to Alternate 1.*
- *Aaron Barnes from Alternate 3 to Alternate 2.*
- *Confirm William Gerhard as Alternate 3.*

Passed unanimously (5-0).

TC2 Appointments – Board of Adjustment (BOA) – Vice-Chair

A motion was made by Councilmember Arno Zegerman, seconded by Mayor Pro-Tempore Terry Mahaffey to confirm Umesh Pai as Vice-Chair on the Board of Adjustment through December 31, 2026.

TC3 Appointments – Culture and Arts Advisory Board (CAAB) – Chair and Vice-Chair

A motion was made by Councilmember Shane Reese, seconded by Mayor Pro-Tempore Terry Mahaffey to confirm Tom Colwell as Chair and Bethany Bryant as Vice-Chair on the Culture and Arts Advisory Board (CAAB) for Fiscal Year 2026-27.

PUBLIC ART MOMENT QUARTERLY – *None Scheduled*

The quarterly public art moment spotlights local creativity, reflects community voices, and supports informed decisions that strengthen a vibrant and growing cultural landscape. The purpose of this item is to bring awareness and appreciation of local artist.

PROCLAMATIONS / SPECIAL PRESENTATIONS – *None Scheduled*

PUBLIC FORUM

More than 20 community members addressed the Mayor and Town Council during Public Forum. Comments focused largely on the future of Fire Station No. 1 in Downtown Apex and the Town's Automatic License Plate Reader (ALPR) Program, along with several other community matters.

PUBLIC HEARINGS

PH1 Annexation No. 831 – 2412 Olive Chapel Road – 3.03 acres

A motion was made by Mayor Pro-Tempore Terry Mahaffey, seconded by Councilmember Arno Zegerman, to continue this item until Thursday, September 10, 2026. Passed unanimously.

PH2 Annexation No. 828 – 2913 Evans Road – 0.570 acres

PH3 Rezoning Case No. 26CZ04 2913 Evans Road

Council considered an annexation and associated rezoning request for property located at 2913 Evans Road. The published agenda identified the requests as Annexation No. 828 and Rezoning Case No. 26CZ04.

An initial motion to approve the request failed on a 2–3 vote, with Mayor Pro Tempore Terry Mahaffey and Councilmembers Arno Zegerman and Shane Reese voting in opposition.

Later in the meeting, Council reconsidered the matter after the applicant offered an additional condition requiring the developer to dedicate public right-of-way along the Evans Road property frontage 30 feet from the roadway centerline, along with a 10-foot temporary construction easement for future curb and gutter and a five-foot sidewalk consistent with the minor collector street typical section.

Following reconsideration, Council unanimously (5-0) approved the annexation and rezoning with the additional condition.

PH4 Rezoning Case No. 26CZ03 Veridea SD Plan Amendment Wake Tech Conlon Campus

A motion was made by Mayor Pro-Tempore Terry Mahaffey, seconded by Councilmember Arno Zegerman, to approve Rezoning Case No. 26CZ03 – Veridea SD Plan Amendment – Wake Technical Conlon Campus. Passed unanimously (5-0).

REGULAR MEETING AGENDA

RA1 Budget Amendment No. 2 – Future of Fire Station No. 1 and Proposed Market Analysis and Feasibility Study

A motion was made by Councilmember Shane Reese, seconded by Mayor Pro-Tempore Terry Mahaffey, to approve budget ordinance amendment no. 2 appropriating funds for the existing

downtown Fire Station No. 1 site redevelopment mark analysis and feasibility study. Passed unanimously (5-0).

INFORMATIONAL ITEMS

Information items focus on educating and bringing awareness to matters or topics that do not require immediate decision or action. Information items are for informational purposes only and may not be discussed as part of the business meeting.

CLOSED SESSION

A motion was made by Councilmember Arno Zegerman, seconded by Mayor Pro-Tempore Terry Mahaffey to enter into closed session for the following five (5) items at 9:31 p.m. Passed unanimously (5-0).

CS1 Joanna Helms, Economic Development Director

NCGS §143-318.11(a)(4):

"To discuss matters relating to the location or expansion of industries or other businesses in the area served by the public body, including agreement on a tentative list of economic development incentives that may be offered by the public body in negotiations"

CS2 Joanna Helms, Economic Development Director

NCGS §143-318.11(a)(4):

"To discuss matters relating to the location or expansion of industries or other businesses in the area served by the public body, including agreement on a tentative list of economic development incentives that may be offered by the public body in negotiations"

CS3 Joanna Helms, Economic Development Director

NCGS §143-318.11(a)(4):

"To discuss matters relating to the location or expansion of industries or other businesses in the area served by the public body, including agreement on a tentative list of economic development incentives that may be offered by the public body in negotiations"

CS4 Karmen McGee, Human Resources Director

NCGS §143-318.11(a)(6):

"To consider the qualifications, competence, performance, character, fitness, conditions of appointment, or conditions of initial employment of an individual public officer or employee or prospective public officer or employee; or to hear or investigate a complaint, charge, or grievance by or against an individual public officer or employee."

CS5 Allen Coleman, Town Clerk

NCGS §143-318.11(a)(1):

"To prevent the disclosure of information that is privileged or confidential pursuant to the law of this State or of the United States, or not considered a public record within the meaning of Chapter 132 of the General Statutes."

ADJOURNMENT

A motion was made by Councilmember Edward Gray, seconded by Councilmember Sue Mu to adjourn the meeting at 10:52 p.m. Passed unanimously (5-0).